

Procedure No: EXP202313081 (PS/00573/2023)
RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 31/07/23, Mr. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity GESTIÓN DE PATRIMONIOS ANFIPOLIS SL. (xxxxxxx) with CIF: B04859575 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are that he has received a promotional email from the respondent without ever having been a client of this company, nor having visited its website or requested any information. Furthermore, he indicates that his email address is on the Robinson List. Along with the complaint, the following documentation is attached:

- Dated 31/07/23, a copy of the email sent by the respondent from the address, xxxxxxx / xxxxxx ***EMAIL.1, to the complainant's email address (***EMAIL.2) with the subject: "Liquidation of laptops withdrawn from a multinational that has had them on leasing" and containing a commercial message about the sale of said laptops.
- Certificate from the Robinson List Service, certifying, among other issues, that the complainant is registered as an active record in the Robinson List Service for the purpose of not receiving commercial communications at the email address ***EMAIL.2, since 29/05/23.

SECOND: On 27/09/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, on 08/10/23, reiterating the forwarding by the same means, on 11/10/23, being collected, on this occasion, on 01/11/23, as stated in the acknowledgment of receipt in the file. No response has been received to this forwarding.

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THIRD: On 31/10/23, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: On 29/11/23, within the framework of the actions carried out by the General Subdirectorate of Data Inspection and in order to clarify certain facts of which this Agency has become aware, and in the exercise of the powers conferred by Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR) and Article 67 of the LOPDGDD, the respondent was requested to submit the required information within ten working days, as a consequence of sending commercial electronic communications to the complainant's electronic address.

The request, which was carried out in accordance with the rules established in the LPACAP, was collected on 30/11/23, reiterating the forwarding by the same means, on 19/12/23, as stated in the acknowledgment of receipt in the file. No response has been received to this forwarding.

FIFTH: On 08/01/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and

64 of the LPACAP, for the alleged infringements of Article 21 of the LSSI, classified as “minor” in Article 38.4.d).

In the opening agreement, it was determined that the sanction that could correspond, taking into account the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 2,000 euros (two thousand euros).

The attempt to notify the initiation of the procedure was carried out in accordance with the rules established in the LPACAP, according to the certificate from the Electronic Notifications and Electronic Address Service. This was sent to the respondent on 09/01/24 through the electronic notifications service, “NOTIFIC@”, having expired due to lapse, as the deadline for appearance was exceeded on 20/01/24.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail to the address indicated by the Tax Agency as the tax domicile. The initiation document sent to the address of GESTIÓN DE PATRIMONIOS ANFIPOLIS SL. ***ADDRESS.1 was returned to the sender as “Unknown” on 15/02/24.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the procedure in this Agency.

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Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

Single: According to the complainant, they have received an advertising email from the respondent entity without ever having been a client of this company, nor having visited its website, nor having requested any type of information. Furthermore, they indicate that their email address is on the Robinson List and to corroborate this claim, they attach the following documentation:

- Dated 31/07/23, a copy of the email sent by the respondent, from the address, xxxxxxxxxx / xxxxxxxxxx ***EMAIL.1, to the complainant's email address, ***EMAIL.2, with the subject: “Liquidation of laptops withdrawn from a multinational that has had them on lease” and containing a commercial message about the sale of said laptops.
- Certificate from the Robinson List Service, certifying, among other issues, that the complainant is registered as an active record in the Robinson List Service for the purpose of not receiving commercial communications at the email address ***EMAIL.2, since 29/05/23.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Summary of the facts that occurred:

In the complaint submitted by the complainant, it is stated that they have received an advertising email from the respondent entity without ever having been a client of this company, nor having visited its website, nor having requested any type of information. Furthermore, they indicate that their email address is on the Robinson List.

To corroborate the above, they attach a copy of the email sent by the respondent, dated 31/07/23, containing an advertising message and the complainant's certificate of being included in the Robinson List since 29/05/23.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and defined in its Annex as: "f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Service of the Information Society" also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, a service of the information society."

IV

Classification of the infringement

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The fact that the respondent sends an advertising email to the claimant without the latter having requested or authorized it constitutes a violation of the provisions established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised,

and the sending of communications that do not include such an address is prohibited.”

V

Graduation of Sanction

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement.”

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the infringement of Article 21.1 of the LSSI.

In accordance with the applicable legislation and considering the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity GESTIÓN DE PATRIMONIOS ANFIPOLIS SL. (xxxxxxx) with CIF: B04859575 for the infringement of Article 21 of the LSSI, classified as “minor” in Article 38.4.d), a sanction of €2,000 (two thousand euros).

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SECOND: NOTIFY this resolution to the entity GESTIÓN DE PATRIMONIOS ANFIPOLIS SL. (La Casa Azul) with CIF: B04859575.

THIRD: Warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or, failing that, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative pathway (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data

Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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